

9	Navarro vs. American Honda Motor Co. 2021-01205671	Motion to Strike or Tax Costs <i>The court admonishes all counsel that before filing motions, counsel should weigh the time and expense in bringing a motion against the issues of the proposed motion. Meaningful meet and confer efforts may resolve the issue(s) of the motion and reduce costs and attorney's fees.</i> Defendant American Honda Motor Co., Inc.'s motion to strike/tax costs is GRANTED IN PART, as follows. Plaintiff Osvaldo Navarro's memorandum of costs filed on 1/29/26 is hereby taxed in the total amount of \$75 only, consisting of the \$75 fee to "Court Appearance Professionals" for an attorney to make a special appearance at the 1/17/25 OSC hearing on behalf of plaintiff's counsel. (See Code Civ. Proc., § 1033.5, subd. (c)(5)(A); Cal. Rules of Court, rule 3.1702 [noticed motion required where court must make prevailing party determination or fix the amount of fees/determine a "reasonable" fee]; see also ROA No. 99–Costs Memo. [see att. 15 & invoice No. S-INV159415]; ROA No. 81 [1/17/25 minute order, noting appearance by attorney Eric Alizade, "specially appearing" for plaintiff's counsel].) Plaintiff may seek this fee via a duly noticed motion for attorney fees. The court finds all of the other costs at issue were reasonably incurred in the prosecution of the action, namely, to file a joint stipulation agreed to by the parties, and to seek and file notices of continuances of an OSC hearing granted by the court. (See Civ. Code, § 1794, subd. (d); see also <i>id.</i> , § 1033.5, subd. (a)(1), (14).) Order to Show Cause re: Dismissal on Settled Case continued October 9, 2026 at 8:30 a.m. in Department C44. Defendant shall give notice.
10	Niknafs vs. Gitibin 2025-01506015	Demurrer to Amended Complaint Defendants Kavous Gitibin and Cindy Gitibin's demurrer to plaintiff Nicholas Niknafs' Second Amended Complaint [SAC] is OVERRULED. (Code Civ. Proc., § 430.10, subds. (e)-(g).) The SAC is not uncertain (Code Civ. Proc., § 430.10, subd. (f)), as sufficient facts are alleged to place moving defendants on notice of the nature of plaintiff's claims. (<i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695 [demurrers for